

23STCV19406 23STCV19406

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-21

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Case Number: 23STCV19406 Hearing Date: July 21, 2026 Dept: 508

THERE ARE TWO TENTATIVES:

Superior Court
of California

County of Los
Angeles

Department 508

MARGARITA
LAZCANO,

Plaintiff,

vs.

CUSTOM
FOODS LLC, et al.,

Defendants.

Case No.:

23STCV19406 [r/w 23STCV26344]

Hearing Date:

July 21, 2026

Hearing

Time: 2:00 p.m.

[TENTATIVE]

ORDER RE:

DEFENDANT CUSTOM

FOODS LLC'S MOTION TO STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT

Background

Plaintiff Margarita Lazcano ("Plaintiff") filed this action on August 15, 2023 against Defendant Custom Foods LLC ("Defendant"). On February 18, 2025, Plaintiff filed the operative third amended complaint ("TAC"), alleging causes of action for (1) age discrimination in violation of FEHA, (2) wrongful termination of employment in violation of public policy, and (3) failure to prevent discrimination, harassment, and retaliation in violation of FEHA.

On December 6, 2023, the Court found "that the following cases, 23STCV26344 and 23STCV19406, are related within the meaning of California Rules of Court, rule 3.300(a). 23STCV19406 is the lead case." (Minute Order 12/6/23.)

Defendant moves to strike portions of Plaintiff's complaint relating to punitive damages. Plaintiff opposes. Defendant did not reply.

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Legal Standard

A court may "[s]trikeout any irrelevant, false, or improper matter inserted in any pleading" or "[s]trike out all or any part of any pleading "not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (CC Code Civ. Proc., § 436, subds. (a)-(b).) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which

the court is required to take judicial notice.” (Code Civ. Proc., § 437.6.)

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question. [Citations.] A pleading may be stricken only upon terms the court deems proper [citation], that is, terms that are just. [Citations.] It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader’s action.” ((Velez v. Smith (2006) 142 Cal.App.4th 1154, 1174-1175 [internal quotations omitted].))

Request for Judicial Notice

The Court grants Plaintiff’s request for judicial notice of “RJN” 1, 2, 3, and 4.

Discussion

Defendant moves to strike multiple portions of Plaintiff’s TAC that relate to punitive damages.

A.

Timeliness

As a preliminary matter, Defendant contends that the instant motion is timely, whereas Plaintiff disagrees. Plaintiff asserts that “Defendant failed to file a motion to strike Plaintiff’s claim for punitive damages, which were alleged in her initial Complaint, First Amended Complaint, and Second Amended Complaint. None of Plaintiff’s prior pleadings contained new or different causes of action from the prior complaints and only clarified the legal theory upon which Plaintiff is entitled to recovery.” (Opp., 3:25-4:2.)

Under Code of Civil Procedure section 435, subdivision (b)(1), “[a]ny party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof.” The timeframe to respond to a pleading is 30 days from when the pleading is served. ((See Id., §

412.20, subd. (a)(3).)

Both

parties cite to Code of Civil Procedure section 435.5, subdivision (b), which states that “[a] party moving to strike a pleading that has been amended after a motion to strike an earlier version of the pleading was granted shall not move to strike any portion of the pleadings on grounds that could have been raised by a motion to strike as to the earlier version of the pleading.” However, this specific code section refers to pleadings that were amended after a motion to strike was previously granted. Here, the Court does not see how this is applicable, given that this is the first motion to strike filed by Defendant. Additionally, Defendant filed the instant motion to strike on March 7, 2025, and Plaintiff filed her TAC on February 18, 2025. Accordingly, Defendant filed the motion to strike fewer than thirty days after the operative pleading was filed and, thus, is timely.

B.

Punitive Damages

Defendant

moves to strike on the basis that “Plaintiff’s allegations of malice and oppression do not rise to the level of culpability required by Civil Code Section 3294.” (Mot., 1:4-5.) Defendant further contends that “Plaintiff dedicated a portion of the TAC to the recovery of punitive damages and seeks punitive damages against Defendant on the second and third causes of action. However, Plaintiff’s punitive damage allegations do not conform to California law.” (Mot., 2:14-16.)

Punitive damages may be

recovered upon a proper showing of malice, fraud, or oppression. ((Civ. Code, § 3294, subd. (a).) A motion to strike may lie where the facts alleged do not rise to the

level of “malice, oppression or fraud” required to support a punitive damages

award. (Turman v. Turning Point of Central

California, Inc. (2010) 191 Cal.App.4th 53, 63-64.) “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the

defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294,

subd. (c)(1).) “‘Oppression’ means despicable conduct that subjects a person to cruel

and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (c)(2).) “‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known

to the defendant with the intention on the part of the defendant of thereby

depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).)

Conclusory

allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud, or malice. ((Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.) To justify punitive damages on this basis, a “plaintiff must establish that the defendant was aware of the probable dangerous consequences of [their] conduct, and that [they] willfully and deliberately failed to avoid those consequences.” (Id., at pp. 895-896.) California law follows a heightened pleading standard for punitive damages—vague and conclusory allegations are insufficient. ((G.D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29.) The trial court shall strike an allegation of punitive damages on motion unless the plaintiff pleaded ultimate supporting facts. ((Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

Civil Code section 3294, subdivision (b) states that “[a]n employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” “‘Managing agents’ are employees who ‘exercise[] substantial discretionary authority over decisions that ultimately determine corporate policy.’ . . . ‘[T]o demonstrate that an employee is a true managing agent under [Civil Code] section 3294, subdivision (b), a plaintiff seeking punitive damages would have to show that the employee exercised substantial discretionary authority over significant aspects of a corporation’s business.” (Davis v. Kiewit Pacific Co. (2013) 220 Cal.App.4th 358, 366 [emphasis in original].)

Defendant

contends that “Plaintiff’s blanket allegations do not meet the high threshold pleading burden for punitive damages because they lack specific facts.” (Mot., 9:16-17.) However, Plaintiff asserts that, inter alia, she “has properly alleged a claim for punitive damages. Plaintiff alleges that Defendant terminated her employment on the basis of their age. (Third Amended Complaint (‘TAC’)

¶¶ 11-14.) Plaintiff further alleged Defendant not only terminated her but also terminated several employees over the age of forty (40) and hired younger employees to replace them. (TAC ¶¶ 13-14.) Plaintiff further alleged Defendant did so with the intent to cause injury to them or with reckless disregard of their rights, and that Defendant's conduct was despicable and committed with willful and conscious disregard of Plaintiff's rights. (TAC ¶ 18.) Moreover, Plaintiff alleged Defendant engaged in a discriminatory employment practice/selection policy which disproportionately affected employees over the age of forty (40). (TAC ¶ 28.) This employment practice/selection policy was done with a conscious disregard for Plaintiff's rights to be free from discrimination in the workplace." (Opp., 5:16-27.)

As Plaintiff

asserted above, her TAC alleges the elements of punitive damages and meets the pleading standard. Plaintiff demonstrates malice and oppression when she "alleges that Defendants had an employment practice/selection policy that wrongfully discriminated against her on the basis of her age in violation of the FEHA. Specifically, Plaintiff alleges that Defendants, her former employer, established a selection policy that targeted employees over the age of forty (40) and selected them for termination. This resulted [in] Defendant's termination of Plaintiff and several of her co-workers who were over the age of forty (40) on April 14, 2023." (TAC, ¶ 28.) Pleading that Defendant has a policy that wrongfully terminates employees and discriminates against a protected class demonstrates malice and oppression, since the policy disregards Plaintiff's rights, resulting in injury and hardship. Additionally, Plaintiff pleads intent because not only does she plead that the policy is intentional, but Plaintiff also pleads that "[d]uring the course of Plaintiff's employment, Defendants failed to prevent their employees from engaging in intentional actions that resulted in Plaintiff's being treated less favorably because of Plaintiff's protected status (i.e., her age)." (TAC, ¶ 38.) Accordingly, Plaintiff pleads malice and oppression.

Defendant

also noted in its motion that "Plaintiff cannot recover punitive damages absent factual allegations supporting the conclusion that Defendant, through its officers, directors or managing agents, acted with oppression, fraud or malice" (Mot., 2:23-25), and, here, "Plaintiff has not pled facts showing[] advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud or malice by an officer, director, or managing agent of the Custom Foods." (Mot., 1:5-7.)

Plaintiff

does not address this argument in her opposition. However, the Court notes that Plaintiff pleads authorization on the part of Defendant's officers. Plaintiff's TAC alleges that "[a]ll defendants compelled, coerced, aided, and/or abetted the discrimination, retaliation, and harassment alleged in this Complaint, ... [and] one or more of the defendants was the agent or employee, and/or acted under the control or supervision, of one or more of the remaining defendants and, in committing the acts alleged, acted within the course and scope of such agency and employment and/or is or are otherwise liable for plaintiff's damages." (TAC, ¶ 4.) Even more pertinent, Plaintiff pleads that "Defendant Custom Foods' CEO Randy Newbold ('Randy') and Defendant Custom Foods' Human Resources Representative, Stephanie Cortez ('Stephanie') called a meeting with Plaintiff and six (6) of Plaintiff's coworkers at Defendant Custom Foods' warehouse." (TAC, ¶ 11.) Plaintiff pleads that "[d]uring the meeting, Randy and Stephanie informed Plaintiff and her six (6) coworkers that they were being terminated, effective immediately. When Plaintiff asked Stephanie to confirm the reason for her termination, Stephanie stated that Defendant Custom Foods did not have enough work for Plaintiff and her six (6) coworkers." (TAC, ¶ 12.) Plaintiff meets the pleading standard for pleading punitive damages against a corporate defendant because she specifically states that Randy Newbold, Defendant's Chief Executive Officer, terminated her. Plaintiff's allegations regarding Defendant's CEO presence at the meeting and assistance in firing her are sufficient to demonstrate that an officer authorized her termination under the pretext of insufficient work. Accordingly, Plaintiff satisfies the required elements to plead punitive damages against a corporate defendant.

Conclusion

Based on the foregoing, Defendant's motion to strike punitive damages is DENIED.

Defendant is ordered to give notice of this Order.

DATED: July
21, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court

Superior Court of California

County of Los Angeles

Department

508

MARGARITA LAZCANO,

Plaintiff,

vs.

CUSTOM FOODS LLC, et al.,

Defendants.

Case No.:

23STCV19406 [r/w 23STCV26344]

Hearing Date:

July 21, 2026

Hearing Time:

2:00 p.m.

ORDER RE:

DEFENDANT CUSTOM
FOODS LLC'S MOTION FOR SUMMARY JUDGMENT OR IN THE
ALTERNATIVE, SUMMARY ADJUDICATION OF ISSUES

The motion for summary judgment or, in the

alternative, summary adjudication brought by Defendant Custom Foods LLC'S ("Defendant") against Plaintiff Margarita Lazcano ("Lazcano") is

continued as set forth below.

Lazcano

interposed 28 evidentiary objections,

and Defendant interposed 10 evidentiary objections, for a total of 38

objections. Due to the voluminous number of objections, the hearing on

the motion will be continued to a date that will be set at the Hearing on

Objections discussed below.

The Court orders the parties to meet and

confer by telephone or in person in a serious and good faith effort to resolve

and eliminate the objections. The only objections that should remain are those

that pertain to material evidence regarding material

issues. Keeping the rules of evidence in mind, the parties should be able to

reduce the objections to just a few. If any material objections

remain unresolved, the parties are to set them forth in a joint statement with

the text, the objection, and the argument of each side in favor of their

respective positions regarding the remaining material objections, along with a

space for a ruling.

The joint statement

must be filed on or before _____ with a

courtesy copy delivered to Department 508. The Court will review any

remaining objections with the parties at a hearing on _____, 2026

at 2:00 p.m. (the "Hearing on Objections"). The date for the hearing on the

motion will be set at the Hearing on Objections.

If necessary, based upon the resolutions

reached during the meet and confer process and/or at the Hearing on Objections,

the parties may respectively file and serve revised briefing and evidence. The

revised evidence may eliminate objectionable material; however, no new

evidence or new argument is to be submitted unless it is as a result of

compromises reached during the meet and confer process. In the event

that revised briefing and evidence are necessary, the Court will discuss with

the parties a briefing schedule for the revised briefing at the Hearing on

Objections.

Lazcano is ordered to give notice of this

Order.

DATED: July
21, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court